

Adrian König

From Tariff to Award

Determinants of Court-Awarded Litigation Costs in Swiss Commercial Courts

This paper provides the first empirical analysis of court-determined litigation costs in Swiss commercial courts. Drawing on 976 published judgments from Zurich and Aargau (2011-2025), it estimates log-linear models linking court costs and party compensation to cantonal tariffs, case characteristics, and procedural indicators. Among the findings is systematic tariff compression: a 10% increase in the base tariff is associated with only 8.9% higher court costs and 8.3% higher party compensation. Procedural complexity dominates court cost deviations. An ex ante model achieves median forecast accuracy of approximately $\pm 21\%$ and $\pm 26\%$.

Category of articles: Academic articles

Areas of law: Civil Procedure Law

Citation: Adrian König, From Tariff to Award, in: Jusletter 11 May 2026